DILLIAN PRINSLOO
versus
ZBC

HIGH COURT OF ZIMBABWE
CHITAPI J
HARARE, 22 July & 15 September 2025

Civil Trial

B T Mudhara, for the plaintiff
O C Chisvo, for the defendant

CHITAPI J: This matter is a civil trial which remains unconcluded for (four) years. The plaintiff claimed against the defendant, damages for the alleged unlawful airing on national television (ZTV) by the defendant of certain original audio visual works belonging to the plaintiff who is a professional cinematographer. The plaintiff claimed damages for copy right infringement as per amended summons and declaration in the sums of USD$363400 and USD$8909.00 or the equivalent in Zimbabwe dollars calculated at the official exchange rate obtaining on the date of payment. The defendant denied liability and the matter proceeded to trial.

At the trial on 14 June 2021, it emerged that the issue of assessment of damages which may be due to the plaintiff was material. The parties agreed that they were in disagreement over the damages and that a neutral evaluation was required because the assessment process was a technical one. The plaintiff suggested the services of the African Regional Intellectual Property Organisation (ARIPO) as its preferred evaluator. The defendant on the other hand suggested the Zimbabwe Intellectual Property Office (ZIPO). After exchanges with the court the court with the consent of the parties decided to invoke the provisions of s 19A of the High Court Act [*Chapter 7:06*].

The provisions of s 19A allow the court to refer any question arising in civil proceedings to a referee. Significantly subsections 1 – 3 of s 19A provides as follows:

"19A Reference of question for inquiry and report by referee.
(1) The High Court may refer any question arising in civil proceedings, including.
    (a) Any question requiring extensive examination of documents or any scientific, technical or local investigation which in the opinion of the High Court cannot conveniently be conducted by it, or
    (b) Any question relating wholly or partly to accounts, for enquiry and report by a referee appointed generally or specially by the High Court.
(2) The High Court may adopt wholly or partly and with or without modification, the report of a referee appointed under subsection (1), or may remit the report to him for further consideration or may take such other action in regard to the report as the High Court considers necessary or desirable.
(3) Any part of a referees report which has been adopted by the High Court subsection (2) shall have the effect subject to any modification the court may have made, as if it were a finding by the High Court in the civil proceedings in question."

It was therefore proper to refer the dispute for determination by a referee experienced in copyright infringements and consequences arising therefrom should liability attaches.

In consequence the matter was postponed sine die. The following order was made.

1. Matter referred to a referee in terms of section 19 A of the High Court Act.
2. The Registrar shall in consultation with the parties advise the court of an available and willing referee from the panel of court recognized referees.
3. The matter is postponed to 8 July 2021

Subject to the making of the order, one, Nancy Samuriwo was appointed as the referee. On 8 July 2021 the parties advised that they had presented their cases to the referee. To date a decision is awarded. The matter has accordingly remained in abeyance since then. The parties have suggested that the court should consider appointing another referee as it appears that the referee who dealt with the matter is not able to render a decision anytime soon. It is appropriate that the referee's position on the matter is first sought concerning the status of the matter. Accordingly, the following order is made.

IT IS ORDERED THAT:

1. The Registrar shall bring this judgment to the attention of the referee Ms Nancy Samuriwo who must through the Registrar provide a status report on this matter within fourteen (14) days of the date of this order.

2. Upon receipt of the status report aforesaid, the Registrar shall set down the matter for case management for determination on the course to take bearing in mind the content of the referee's status report.

CHITAPI J:…….

Mundia & Mudhara, legal practitioners, for the plaintiff
Scanlean & Holderness, for the defendant